

**NATIONAL COMPANY LAW TRIBUNAL
DIVISION BENCH – II
CHENNAI**

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF NATIONAL COMPANY LAW TRIBUNAL, CHENNAI BENCH, HELD ON 25-04-2023 (TUESDAY) AT 10.30 A.M. THROUGH VIDEO CONFERENCING:

**PRESENT : SHRI. SANJIV JAIN, HON'BLE MEMBER (JUDICIAL)
SHRI. SAMEER KAKAR, HON'BLE MEMBER (TECHNICAL)**

IN THE MATTER OF : Velohar Infra Pvt Ltd

PETITION NUMBER : CP/114/IB/2018

APPLICATION NUMBER:

- a) MA/356/2019
- b) MA/357/2019
- c) MA/358/2019
- d) MA/359/2019
- e) MA/385/2019
- f) IA/1093/IB/2020
- g) IA/1295/IB/2020
- h) IA/237(CHE)/2021 IN MA/524/2019
- i) IA/352(CHE)/2021
- j) IA/531(CHE)/2021 IN IA/352(CHE)/2021

ORDER

**308)(a)MA/356/2019 IN CP/114/IB/2018
308)(b)MA/357/2019 IN CP/114/IB/2018
308)(c)MA/358/2019 IN CP/114/IB/2018
308)(d)MA/359/2019 IN CP/114/IB/2018
308)(e)MA/385/2019 IN CP/114/IB/2018
308)(f)IA/1093/IB/2020 IN CP/114/IB/2018**

Ld. Counsel Ms. Pavithra Dayalan appears for the RP. Ld. Counsel Mr. V. Manisekaran is present. Ld. Counsel Mr. Ajoy Kumar Gnanam is present.

List the matters for further hearing on **30.06.2023**.

Contd ... 2

308)(g)IA/1295/IB/2020 IN CP/114/IB/2018

Ld. Counsel Ms. Pavithra Dayalan appears for the Applicant / Liquidator.

IA/1295/IB/2020 has been filed by the Liquidator seeking the following reliefs:

*“ i) permit the Application to sell by way of private sale the immovable property situated at **Plot No.1F, Seventh Cross Street, Wood Creek Country, Nandambakkam, Chennai standing in the name of Corporate Debtor in Survey Nos.144 / 1B part and 144 / 2B part and situated at Nandambakkam Village, Alandur Taluk, having land admeasuring 2,705 Sq. Ft. and building having built-up area of 5,525 Sq. Ft. within the Sub-Registration District of Alandur within the Corporation limits of Chennai and bearing Plot. No I in the approved layout known as “Wood Creek County”**); and*

ii) pass other or further orders which may deem fit and thus render justice.”

This IA was filed on 01.12.2020 during the Covid lockdown period.

Pursuant to the orders passed by this Tribunal in IA/531(CHE)/2021 which was pertaining to the scheme under Liquidation, this Application IA/1295/IB/2020 was kept on hold.

We have dismissed IA/531(CHE)/2021 today.

As to the request made in IA/1295/IB/2020 to allow private sale of the property of the Corporate Debtor, it is seen that this IA/1295/IB/2020 was filed during the Covid lockdown. Much water has flown after that.

Ld. Liquidator is directed to issue suitable notice for public auction of the stated property within a period of 15 days from the date of this order.

Accordingly, IA/1295/IB/2020 **stands disposed off.**

Contd ... 3



308)(h)IA/237(CHE)/2021 IN MA/524/2019 IN CP/114/IB/2018

Ld. Counsel Mr. M. Palanimuthu appears for the Applicant. Ld. Counsel Mr. S. Sathiyarayanan appears for the Liquidator.

From the Table at page nos.8 to 9 of the Reply, it appears that claim amount of Rs.40,11,339/- pertaining to VIVPL has been rejected.

At the request of Counsel for the Applicant, list this application along with connected matter for further hearing on **30.06.2023**.

308)(i)IA/352(CHE)/2021 IN CP/114/IB/2018

Ld. Counsel Ms. Pavithra Dayalan is present for the Liquidator.

This Application has been filed seeking following reliefs:

A. To restrain the liquidator / Respondent from selling, transferring or disposing off the assets of Corporate Debtor pending disposal of the scheme of Arrangement proposed by the Applicant; and

B. To grant such other reliefs as the Hon'ble Tribunal may deem fit in the interest of justice.

The Applicant herein was a scheme proponent for the company under liquidation.

IA/531(CHE)/2021 was filed seeking approval of the scheme under liquidation in which it has been reported by Ld. Liquidator that SCC has already rejected the scheme.

Today we have disposed off IA/531(CHE)/2021.

In view of the same, IA/352(CHE)/2021 **stands disposed off**.

308)(j)IA/531(CHE)/2021 IN IA/352(CHE)/2021 IN CP/114/IB/2018

Ld. Counsel Ms. Pavithra Dayalan is present for the Liquidator.

IA/531(CHE)/2021 has been filed seeking following reliefs:

A. To direct the Liquidator to file the Scheme of Arrangement submitted by the Applicant before this Hon'ble Tribunal for the consideration of this Hon'ble Tribunal and take all such actions as may be necessary to process such Scheme of Arrangement;

B. To stay the Private sale of the Assets of the Corporate Debtor by the Liquidator pending sanction of the Scheme of Arrangement proposed by the Applicant;

C. To stay all legal proceedings pending before this Hon'ble Tribunal in relation to Corporate Debtor till such time the Scheme of Arrangement proposed by the Applicant is considered and disposed off by this Hon'ble Tribunal; and

D. To grant such other reliefs as the Hon'ble Tribunal may deem fit in the interest of justice.

Submission of the Ld. Liquidator vide reply vide S.R.No.3312 dated 27.05.2022 at para 9 at page no.5 and the prayer are reproduced below:

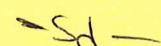
"As SCC has rejected the Scheme and the Liquidator is awaiting the approval of this Hon'ble Tribunal for the Private sale of the immovable property (IA. No.1295 of 2021)."

"Therefore, it is humbly prayed that this Hon'ble Tribunal may be pleased to take on record the above Report of the Liquidator and approve the private sale of the immovable property and pass order as it may deem fit and appropriate and thus render justice."

It is seen that the SCC has clearly rejected the scheme. Nothing survives in IA/531(CHE)/2021. **It is accordingly disposed off as infructuous.**


SAMEER KAKAR
Member (Technical)

Phk


SANJIV JAIN
Member (Judicial)